

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 25-12

Served: August 20, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO AMEND COMPLAINT AND JOINT MOTION TO EXTEND DEADLINES

I. Introduction

On May 28, 2026, six days after the close of discovery pursuant to the Second Amended Scheduling Order (“Second Amended Schedule”) (issued January 21, 2026), Complainant Dollar General Logistics, LLC (“Complainant” or “Dollar General”) filed a motion for permission to file an amended complaint, and both parties jointly filed a motion to extend deadlines. At the time it filed the motion to amend the complaint, Complainant’s initial brief was due June 22, 2026, less than a month later. Exhibit A, attached to the motion, is the proposed Verified Amended Complaint, and Exhibit B is a redlined version of the original complaint showing the allegations added and removed from the complaint, resulting in Exhibit A.

On June 4, 2026, Respondent Yang Ming Marine Transport Corp. (“Respondent” or “Yang Ming”) filed an opposition to Complainant’s motion to file an amended complaint, but jointly seeks to belatedly extend the schedule. *See* Respondent’s Memorandum of Law in Opposition to Motion for Leave to Amend Complaint and in Support of Motion to Extend Deadlines (“R Opp”).

I held Complainant’s motion in abeyance by order dated June 18, 2026, and scheduled a status conference for July 1, 2026, to discuss the parties’ positions. On July 1, 2026, both parties appeared and further explained their respective arguments in favor of and in opposition to allowing the amendment of the complaint at this late date. Subsequently, Complainant submitted a letter with two exhibits, Exhibits 63 and 63A.¹ In the letter, Complainant provides cases on which it relies in support of amending the complaint after discovery has closed. The exhibits

¹ A letter is not usually made part of the record, so it is not preferred, particularly when accompanied by exhibits. Complainant did not submit a motion for confidential treatment of the letter or exhibits, but the letter and exhibits were also filed with the Secretary and the content of the exhibits are quoted in the proposed amended complaint. Accordingly, it appears that the letter was intended to be added to the docket, and I accept it as a supplement to the motion to amend.

attached to the letter were received by Dollar General though document production before discovery closed and contain Yang Ming internal email exchanges that Dollar General asserts support adding new allegations to the complaint. Dollar General also asserts that the original email exchange was produced in Chinese, and it was translated into English to use at the email author's deposition on April 17, 2026. It remains unclear why Dollar General waited over a month after that deposition and nearly a week after discovery had closed, until May 28, 2026, to file the motion to amend the complaint and to jointly seek an extension of discovery and briefing.

II. Legal Standard and Discussion

The Commission's Rule 66(a) provides that amendments "will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues." 46 C.F.R. § 502.66(a). The Commission Rules, however, do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. Instead, Commission Rule 12 states that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Federal Rule 15(a)(1)(B) allows a one-time amendment as a matter of course within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that 21-day period, which in this proceeding occurred over a year ago, either the written consent of the opposing party or leave of the court is required to amend a pleading, and the latter should be freely given when justice so requires. F.R.C.P. 15(a)(2). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

Rule 15(a)(2) is liberally construed by the courts to allow amendment, and the timing of the proposed amendment in relation to the close of discovery alone is not determinative of a finding of undue delay, including on the eve of discovery closing. *U.S. ex rel. Davis v. District of Columbia*, 265 F.R.D. 1, 2 (D.D.C. 2010) ("The Court, however, sees no undue delay. [Plaintiff] has represented to the Court that the factual basis for his proposed amended complaint only became apparent through a deposition taken of a District witness in late November 2009...He sought leave to amend in mid-January 2010."). "Delay is 'undue' when an unwarranted burden is placed on the court or when the requesting party has had previous opportunities to amend." *20230930-DK-Butterfly-1, Inc. f/k/a Bed, Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2024 WL 5054943, *3 (ALJ Dec. 5, 2024) (Order Denying Complainant's Second Motion to Amend the Complaint) (citations omitted) (hereafter, "BBBY").

Complainant's Motion For Permission to File Proposed Verified Amended Complaint ("MTA") asserts that the proposed amendment "does not add any additional respondents to this proceeding or change the nature of the claims previously alleged in its original Verified Complaint." MTA at 3. Based "on information learned in discovery in this case" the proposed amended complaint alleges that Respondent's conduct also violated three other sections of the

Shipping Act: 46 U.S.C. Sections 41104(a)(5), 41104(a)(9), and 41102(d) (formerly 41104(a)(3)). *Id.*

Starting with the § 41102(d) allegation, Dollar General alleges that it learned during discovery that Respondent retaliated against it to punish Dollar General “for raising its legal concerns.” *Id.* at 4. Dollar General seems to argue that this allegation does not add to or change the nature of the claims previously alleged, which includes Yang Ming’s alleged “course of conduct during the relevant time period [which] reflected conscious and intentional practices and policies designed to enrich Respondent at the expense of Complainant and other shippers during a time of significant market disruption.” *Id.*

Next, Dollar General moves to include a violation of § 40104(a)(5), alleging that Yang Ming’s systematic failure “to meet its service commitments, [refusal] to honor contract rates, and [failure] to provide vessel space for shipments destined for or originating from specific ports also constituted unfair and unjustly discriminatory practices in the matter of rates and charges with respect to those port.” *Id.* at 5. Based on evidence and testimony it received through discovery, Dollar General alleges that Yang Ming prioritized higher-price cargo and redirected vessel capacity elsewhere while simultaneously failing to meet its service commitments, reflecting “a clear pattern of conduct targeted at the rates and charges for carriage to and from the ports that were supposed to be serviced under [the parties’] service contract, rather than legitimate transportation factors....” *Id.*

Dollar General also seeks to amend the complaint to add a § 41104(a)(9) cause of action alleging that Yang Ming engaged in port discrimination by reallocating capacity away from the ports set in Dollar General’s services contract to ports and routes that generated higher spot-market revenue, which Dollar General alleges is a separate but distinct cause of action from the proposed § 41104(a)(5) cause of action.

Dollar General asserts that these additional causes of action could impact reparations, including up to double the amount of actual injury if retaliation is proven, as provided in 46 U.S.C. § 41305(c). It argues that Yang Ming’s retaliatory conduct “impacted Complainant in connection with the 2022-23 shipping year (i.e., the shipping year *after* the year that was the primary focus of the original Verified Complaint),” so a lost profit analysis with respect to the 2022-23 shipping year is now necessary. *Id.* at 6. The original complaint included allegations of lost profits. Verified Complaint ¶¶ 100-102. It is unclear from the MTA if a lost profit analysis was pursued during the course of expert discovery, and if not, why it was not pursued before now, or why the proposed amendments “necessitate” a lost profit analysis. As Yang Ming observed in its support of the joint motion to extend discovery, four experts have provided reports and depositions in this proceeding. Respondent’s Memorandum of Law in Support of Motion to Extend Deadlines at 8 (“Production of four expert reports ensued, followed by depositions of those four experts.”). No authority was provided by Dollar General to support reopening discovery to pursue an argument that appears to have been contemplated by and available to Dollar General during the course of the proceeding but not raised until three weeks before its initial brief was due. Complainant’s proposed amended complaint includes additional allegations regarding retaliatory conduct resulting in increased prices in the 2022-2023 shipping year, but again, it is unclear why Dollar General did not pursue a lost profits analysis during expert discovery with what it already knew about the impact of the initial complaint’s alleged

violations. Exhibit A Proposed Verified Amended Complaint ¶¶ 162, 176; *also see* Verified Complaint ¶ 85 (“...Yang Ming’s behavior has caused significant harm to Complainant in numerous ways, such as...disrupting Complainant’s ability to ensure the timely availability of merchandise for sale to U.S. customers, and resulting in injuries, including lost profits....”); ¶ 96 (“Yang Ming’s conduct has caused Complainant to incur other injuries, including delays, failures to receive time-sensitive merchandise, reduced inventory available for sale, unnecessary expenses, lost profits....”); ¶¶ 100-102 (alleging a method to calculate lost profits, that Complainant could not mitigate Yang Ming’s “failure to honor its service commitments” and “sustained lost profits as a result of the reduction of imported cargo....”).

Moreover, the two cases cited by Dollar General in its July 1, 2026, supplemental letter brief, were default decisions, not recently issued, and do not address reopening discovery to pursue new or further evidence to support an argument for reparations. *See MCS Industries, Inc. v. COSCO Shipping Lines Co., Ltd. and MSC Mediterranean Shipping Co. SA*, Dkt. No. 21-05, 2024 WL 5714539, *1 (ALJ Feb. 16, 2024), *aff’d sub nom. MCS Industries, Inc. v. Mediterranean Shipping Co. S.A.*, Dkt. No. 21-05, 2024 WL 5714565 (FMC Jul. 16, 2024), *aff’d sub nom. MSC Mediterranean Shipping Co. S.A. v. Federal Maritime Commission*, 141 F.4th 222 (D.C. Cir. 2025) (remanded to determine additional ground of default and for complainant to submit evidence to support the reparations it seeks); *Color Brands, LLC v. AAF Logistics, Inc.*, Dkt. No. 22-18, 2024 WL 246193, *3 (FMC Jan. 18, 2024) (remanded to ALJ for determination of “the reasonable date or dates of injury” for calculation of reparations and interest). As default decisions, neither case addresses reopening discovery since respondents in both proceedings refused to participate in it. In the current proceeding, the parties completed a fulsome discovery process and Dollar General seeks to reopen discovery to obtain support from experts for its lost profits argument, which could have been addressed while discovery was open, not raised a week after it closed.

Dollar General also seeks to conform the amended complaint to the facts it asserts it has discovered during discovery. While that typically is not necessary and can be addressed in briefing, Dollar General argues that these amendments “are substantially based on facts that were not yet available to Complainant at the time it filed its original Verified Complaint because they stem principally from Respondent’s internal communications produced...in discovery...and confirmed during fact depositions of Respondent’s employees.” *Id.* at 7. It will not unduly prejudice Yang Ming because the additional allegations relate to Yang Ming’s “conduct, policies, and practices” and Yang Ming will have an opportunity under the proposed revised schedule to respond to the additional allegations and lost profit analysis and defend itself. The proposed amendments do not broaden the issues, Dollar General contends, because the conduct occurred during the shipping year addressed in the original complaint (although the harm to it occurred in both the 2021-2022 shipping year, and the following year, which it asserts is not alleged in the original complaint). Finally, Dollar General contends that there is no dilatory motive behind this late motion to amend the complaint. It asserts that to the contrary, it is more efficient to allow the amendment and proceed to briefing rather than require a separate complaint and proceeding on the same conduct during (mostly) the same time period. Dollar General did not offer case authority supporting the amendment of the complaint after discovery was completed in either its motion, or the letter following the status conference.

Yang Ming contends that the MTA should be denied because it would result in undue delay, prejudice to Respondent, and amendment is futile. Respondent cites to two FMC cases in support of its position that permission to file an amended complaint should not be granted because it will result in undue delay: *Seafair USA LLC v. Sterling Container Line Ltd. and Atlantic Forwarding Ltd.*, Dkt. No. 22-34, 2023 WL 4418617 (ALJ Jul. 6, 2023) (Order on Motion to Amend the Complaint and the Scheduling Order) (“Seafair”), and *BBBY*, 2024 WL 5054943.

In *Seafair*, the Administrative Law Judge (“ALJ”) held that the request to file an amended complaint after discovery was closed and ten days before complainant’s initial brief was due constituted undue delay. The ALJ noted that many of the proposed amendments were within Seafair’s knowledge, meaning an amended complaint could have been sought earlier in the proceeding. In addition, Seafair did not explain why it had not filed the motion sooner given that it possessed the knowledge of the facts prior to discovery closing. In addition, the amended complaint would have broadened the issues, possibly leading to the reopening of discovery and motions practice, resulting in prejudice to the opposing parties. Here, Dollar General stated that it learned of the alleged conduct during the course of discovery, through documents it had to have translated to English from the original Chinese and through the deposition of the author/recipient of those documents. This is unlike *Seafair*, where complainant simply waited to file an amended complaint despite possessing knowledge of the facts well before discovery ended. The MTA here is more akin to *Davis v. D.C.*, where the plaintiff learned of alleged conduct during a deposition in November and sought to amend the complaint (for a second time) in January, on the eve of discovery closing. 265 F.R.D. 1, 2. The exhibits attached to Dollar General’s post-status conference letter (Exhibits 63 and 63(a)) are internal Yang Ming emails that Dollar General received during discovery, translated, addressed in an April 17, 2026, deposition, and referenced in the proposed amended complaint just over a month after the deposition.

BBBY is also distinguishable. In *BBBY*, complainant had already been granted the right to amend the complaint once to include a retaliation claim based on evidence obtained through discovery. 2024 WL 3967408, *3 (ALJ August 23, 2026, Order on Amended Complaint, Confidentiality, and 4th Revised Scheduling Order) (“There is no evidence of undue delay, as the relevant documents were not in Complainant’s possession until provided by Respondents in discovery.”). The motion to amend the complaint a second time, after discovery closed and shortly before BBBY’s brief was due, was to add an increase to the amount of reparations it sought. The ALJ found this “ministerial” and denied the amendment as unnecessary, stating “[i]t is not unusual for the amount of reparations claims to change during the course of discovery and it is not necessary to file an amended complaint to update the specific amount sought, especially here where the categories of damages sought in the amended complaint are not changing, only the amount.” *BBBY*, 2024 WL 5054943, *2. Here, Dollar General is seeking to add claims discovered through document production and depositions, similar to complainant’s first amended complaint in *BBBY*. While Dollar General also seeks to increase the amount of reparations it alleges it is owed, that increase is related to the new claims and is not solely ministerial.

Yang Ming asserts that it would be prejudiced by the amendment because the amended complaint “contains no less than 192 highly detailed factual allegations selectively (and misleadingly) drawn from the several depositions and, literally, millions of documents which

have been produced in this matter.” Yang Ming Opp. at 5. It is unclear how Yang Ming’s production of its own documents from August 22, 2025 (*see* August 12, 2025, Scheduling Order) through May 22, 2026 (*see* January 21, 2026, Second Amended Scheduling Order) which it alleges surpasses 2 million pages, causes *it* to be prejudiced, rather than Dollar General, which had to review and translate the documents in order to use them in depositions and in drafting the amended complaint. While Yang Ming’s production in this proceeding is substantial, the parties received extensions of the schedule because Yang Ming needed to first review the collected documents for privilege and confidentiality before producing them. Second Joint Motion to Extend Deadlines at 3. Dollar General provides Yang Ming’s bates stamp numbers on the documents it cites in the proposed amended complaint, which should make it easier for Yang Ming to respond to the allegations in the amended complaint by referencing its own data base. That being said, the proposed amended complaint goes well beyond providing a “clear and *concise* factual statement sufficient to inform each respondent with reasonable definiteness of the acts or practices alleged to be in violation of the law, and a statement showing that the complainant is entitled to relief...” 46 C.F.R. § 502.62(3)(iii) (emphasis added). Complaints should not double as a pre-hearing brief, which this proposed amended complaint tends toward with its citation to exhibits that are not attached or yet in the record, extensive argument, and substantial citation to case law. While I will not require Dollar General to submit a more concise amended complaint due to the timing of the motion at the end of the proceeding, expanding the factual statement of the complaint from 24 pages to 57 pages—more than doubling it—is unnecessary and is discouraged.

Yang Ming also contends that the proposed amended complaint would not survive a motion to dismiss because the new claims are time-barred and do not relate back to the original claims, thus, the amendment would be futile. I do not agree. Dollar General avers that the parties had a tolling agreement at the time the complaint was filed. Complaint ¶ 88. Yang Ming did not admit to any paragraph in the complaint, and it denied information or belief as to the tolling agreement. Answer ¶ 2. While it could address the absence of a tolling agreement in its brief because it generally alleged statute of limitations as an affirmative defense, it seems unlikely it would have waited until after such voluminous discovery to raise it in a brief at the conclusion of the proceeding. *Id.* at ¶ 15. Given the allegation of a tolling agreement by Dollar General and Yang Ming’s generalized statute of limitations affirmative defense, I cannot find it would be futile for Dollar General to proceed with the amended complaint on the basis of the original complaint being time barred. In terms of the timeliness of the amended complaint, Dollar General asserts that the new claims were discovered recently, which appears to be likely, and the new claims would be timely. *See, Kubiki v. Medtronic, Inc.*, 293 F.Supp3d 120, 157-158 (D.D.C. Feb. 2018) (the discovery rule goes to when the plaintiff had knowledge of the facts underlying the new claim). The inquiry then turns to whether a respondent has had fair notice of the claim; if the new claim relates back to the original claims, it would be considered fair notice. *Id.* at 159. Yang Ming cites no authority for its assertion that the new claims do not relate back. I find that the new claims are based on conduct occurring at the same time as the original claims and related to the same service contract. Accordingly, this assertion is not persuasive in establishing that the proposed amended complaint would be futile.

III. Joint Motion to Extend Deadlines and Revised Scheduling Order

The parties jointly moved for an extension of the schedule for reasons that don't appear to be entirely related to Dollar General's motion to file an amended complaint. Dollar General states that its addition of a Section 41102(d) claim will necessitate "a lost profit analysis with respect to the 2022-2023 shipping year"—the year after the shipping year service contract at issue in the original complaint. Complainant's Motion at 9. Dollar General also states that the parties have not completed discovery, despite filing the motion after discovery closed and three weeks before their initial brief was due. Similarly focusing on unfinished discovery, Yang Ming states for its part that the parties produced four expert reports and deposed those four experts, and the last deposition occurred on May 28, 2026, which is after the date discovery was scheduled to close and corresponds with the date of Dollar General's motion to amend the complaint. The transcript of the last deponent, Yang Ming notes, was not received until June 1, 2026. The parties have now had two and a half months since the motions were filed to review documents and transcripts and should be better prepared to move forward with the proceeding.

Dollar General proposes a revised schedule that includes new expert and rebuttal reports regarding lost profits, as well as a new briefing schedule; Yang Ming is silent as to the specific proposed extension deadlines, but jointly moves to extend the schedule. For the reasons discussed above, reopening discovery to accommodate more expert reports and testimony is not reasonable, and good cause has not been established to do so. Moreover, because over two months have passed since the motion was made, the parties should have had sufficient time to complete review of documents produced in discovery, so no further extension is warranted. Dollar General's proposed schedule fails to allow Yang Ming the opportunity to respond to the amended complaint. Accordingly, the schedule is revised to allow Yang Ming to respond to the amended complaint. No time, however, will be allotted for further dispositive motions as it will be more efficient at this late date for Yang Ming to address such arguments in its opposition brief.

Similarly, since Dollar General's brief was due in three weeks at the time it filed the motions, it should not require the requested 34 days to submit its brief. The joint motion to extend the schedule also proposes to allow Yang Ming only 28 days to file its opposition. At the status conference, Yang Ming requested 45-days after the filing of Dollar General's initial brief to file their opposition brief, but in their written support of the motion to extend deadlines they did not request any change to the proposed schedule set forth in the joint motion to extend the schedule. Although they did not request it in their written response supporting the joint motion to extend the schedule, Yang Ming is granted an additional week to submit its opposition brief.

The parties are hereby **ORDERED** to follow the revised schedule:

Aug. 26, 2026	Respondent files response to Amended Complaint
Sept. 23, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
Oct. 28, 2026	Respondent's Opposition Brief, Proposed Findings of Fact, Appendix, and Responses to Complainant's Proposed Findings of Fact

Nov. 12, 2026 Complainant's Reply to Respondent's Brief and Proposed Findings of Fact

The parties should expect to meet this schedule without any further extensions. The parties should review the Initial Order, and the Scheduling Order issued on August 12, 2025, for instructions on filing both confidential and public versions of their briefs, proposed findings of fact, and appendices.

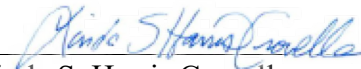
IV. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth above, it is hereby

ORDERED that Complainant's motion to file an amended complaint be **GRANTED**. It is

FURTHER ORDERED that the parties joint motion to extend deadlines is **DENIED IN PART** and **GRANTED IN PART AS MODIFIED**. The parties must follow the third revised schedule above.

The Secretary is requested to docket Dollar General's Verified Amended Complaint found at Exhibit A of Complainant's Motion for Permission to File Proposed Verified Amended Complaint Against Respondent and Joint Motion to Extend Deadlines, filed on May 28, 2026.



Linda S. Harris Crovella
Administrative Law Judge